# Dobbs v. Jackson Women's Health Organization

## Precedent, constitutional interpretation, and judicial decision-making

Adapted and condensed from a paper for POLA-4011-01, Professor Nolan, May 5, 2025. Revised for this portfolio in October 2026 with AI-assisted editing and citation checking. This sample analyzes the 2022 decision; it is not a survey of current abortion law.

### The dispute

In *Dobbs v. Jackson Women's Health Organization*, the Supreme Court considered Mississippi's Gestational Age Act, a 2018 law that prohibited most abortions after fifteen weeks of pregnancy, with exceptions for medical emergencies and severe fetal abnormalities. Jackson Women's Health Organization and one of its physicians challenged the law because it conflicted with the constitutional framework established by *Roe v. Wade* and reaffirmed in *Planned Parenthood v. Casey*. [1]

The case raised a question broader than the validity of one state statute: whether the Court should retain the constitutional protection recognized in those earlier decisions. Mississippi sought to uphold its law and asked the Court to overrule *Roe* and *Casey*. The clinic relied on those precedents to argue that a state could not prohibit abortion before viability. [1]

### The framework before Dobbs

*Roe* recognized constitutional protection for the decision to terminate a pregnancy and established a framework for balancing that protection against state interests. *Casey* retained the central protection for pre-viability abortion while replacing *Roe*'s trimester framework with the undue-burden standard. Under *Casey*, a restriction was invalid if its purpose or effect was to place a substantial obstacle in the path of a person seeking a pre-viability abortion. [2, 3]

That distinction mattered to the challenge against Mississippi's law. Regulation and prohibition were not interchangeable under the existing framework: a state could regulate abortion within constitutional limits, but it could not impose a pre-viability ban. The federal district court blocked the fifteen-week law, and the Fifth Circuit affirmed. Both courts applied the Supreme Court precedents that remained binding at the time. [1]

## The decision and the separate opinions

The Supreme Court reversed the Fifth Circuit. Six justices supported the judgment upholding Mississippi's law, but only five joined Justice Samuel Alito's opinion overruling *Roe* and *Casey*. Chief Justice John Roberts concurred in the judgment without joining that broader holding. Justices Stephen Breyer, Sonia Sotomayor, and Elena Kagan dissented. [1]

The majority concluded that the Constitution does not confer a right to abortion. Its reasoning emphasized constitutional text and history and rejected abortion as a right deeply rooted in the nation's history and tradition. It also concluded that stare decisis, the principle of adhering to precedent, did not require preserving *Roe* and *Casey*. The majority applied rational-basis review and found Mississippi's asserted interests sufficient to sustain the law against this constitutional challenge. [1]

Roberts took a narrower position. He would have upheld the fifteen-week restriction without deciding that the Constitution provides no protection for abortion at all. His opinion illustrates an important distinction: agreeing with the outcome of a case does not necessarily mean agreeing with the majority's reasoning or the scope of its decision. [1]

## What the case illustrates

*Dobbs* shows why understanding judicial decision-making requires attention to both precedent and the level of the court deciding a dispute. The lower courts applied *Roe* and *Casey*; the Supreme Court reconsidered them. The disagreement therefore involved not only how to apply an existing rule, but whether that rule should continue to govern.

The contrast between the majority and Roberts's concurrence also makes the scope of a ruling central to the analysis. Upholding a particular restriction and eliminating the constitutional framework that previously governed such restrictions are different judicial choices. Reading the opinions with that distinction in mind helps explain both the immediate result and the broader significance of the decision.

## Sources

[1] *Dobbs v. Jackson Women's Health Organization*, 597 U.S. 215 (2022). Majority slip opinion, pp. 1-8, 32-33, 66-79; Roberts, C.J., concurring in the judgment, pp. 1-2. Read the Court's opinions.

[2] *Roe v. Wade*, 410 U.S. 113, 153-165 (1973). Read the opinion.

[3] *Planned Parenthood of Southeastern Pennsylvania v. Casey*, 505 U.S. 833, 846, 878-879 (1992). Read the opinion.